

Sumit S/O Maheshchandra Upadhyay vs Master Arnav S/O Sumit Upadhyay Thr. His ... on 1 February, 2022

Author: Avinash G. Gharote

Bench: Avinash G. Gharote

36 REVN-12-2020.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR
CRIMINAL REVISION APPLICATION NO.12 OF 2020
(Sumit Maheshchandra Upadhyay .Vs. Master Arnav Sumit Upadhyay)
Office Notes, Office Memoranda of Coram,
appearances, Court's orders of directions
and Registrar's orders. Court's or Judge's order
Shri. P. K. Mishra, Advocate for Applicant
Shri. N. R. Bhishikar, Advocate for Respondent.
CORAM : AVINASH G. GHAROTE, J.

DATE : 1st FEBRUARY, 2022.

Hearing was conducted through Video Conferencing and the learned counsel agreed that the audio and visual quality was proper.

2. Mr. P. K. Mishra, learned counsel for applicant submits, that the question of maintenance of the respondent child has been finally resolved by the father and mother, entering into consent terms under Section 13- B of the Hindu Marriage Act, 1955 (for short, "the said Act") in which, proceedings the permanent alimony of the respondent child has been taken care off as a one time settlement. He further submits that the consent terms have been filed before the learned Family Court and have been registered as Petition No.F-782 of 2021 and after the expiry of the statutory period, shall be fructified, by being converted into decree of divorce by mutual consent, which would also contain the terms about the permanent alimony to the respondent/child.

3. Mr. Bhishikar, learned counsel for respondent does not dispute the above position and submits that the matter be kept in abeyance till such time the proceedings under section 13-B of the said act are being decided whereupon 36 REVN-12-2020.odt these proceedings can be disposed of in terms of the decree passed in Petition No. F-782 of 2021, to which Mr. Mishra, learned counsel for applicant has no objection.

4. Considering he above position, the present revision is kept in abeyance till the decision of Petition No. F-782 of 2021. Once the Petition No. F-782 of 2021 is decided, the counsel for the parties would be at liberty to make a mention before this court by placing the copy of the decree for divorce as may

be passed in Petition No. F-782 of 2021 for disposal of this revision in terms of the consent terms regarding the permanent alimony to the respondent child.

JUDGE Tambe.

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